CRIMINAL APPEAL OFFICE SUMMARY

R v	**Elijah Clive STOKES (aged 39 – DOB 04.04.85)**	**202301775B5**
	Craig Monroe MILLER (aged 39 – DOB 3.10.85)	**202301778/2091B5**
	Connor PALMER (aged 41 – DOB 30.12.82)	**202301793B5**

Rec'd in CAO: 30.05.23

Ind. T20207725

REPORTING RESTRICTIONS

Registrar's Note: *Judges, clerks and shorthand writers – please ensure that judgments refer to any reporting restrictions at the outset. The text underlined below may be a useful pronouncement template. The Registrar suggests using red text to flag the restriction(s).*

Registrar's Note: Judges, clerks and shorthand writers –The text underlined below will be a useful pronouncement template, should the Court choose to order a re-trial.

This judgment is subject to an order made pursuant to s.4(2) of the Contempt of Court Act 1981 postponing publication of any report of these proceedings until the conclusion of the re-trial (trial) in order to avoid a substantial risk of prejudice to the administration of justice in those proceedings.

CROWN COURT PROCEEDINGS

On 2 May 2023, in the Crown Court at Birmingham (Mr Justice Pepperall), **the three applicants** were each unanimously convicted of conspiracy to murder (Count 1). **Craig Miller** was also convicted unanimously of a further count of conspiracy to murder (Count 2).

On 6 June 2023 (before the same Court), **Elijah Stokes** (aged 38) was sentenced to a determinate sentence of **27 years imprisonment**. He was further ordered to pay the Victim Surcharge of £190.

Craig Miller (aged 37) was sentenced to **life imprisonment pursuant to s.285 of the Sentencing Act 2020, with a minimum term of 30 years imprisonment, less 1054 days spent on remand (on Count 1),** with a minimum term of 15 years imprisonment less 1054 days spent on remand (on Count 2), to run concurrently. He was further ordered to pay the Victim Surcharge of £190.

Connor Palmer (aged 40) was sentenced to **life imprisonment pursuant to s.285 of the Sentencing Act 2020, with a minimum term of 23 years imprisonment, less 1054 days spent on remand**. He was further ordered to pay the Victim Surcharge of £190.

REPRESENTATION

Each applicant was represented under a Representation Order by Solicitors (Reeds for **Stokes,** Carson Kaye for **Palmer** and Berkeley Square for **Miller**) and two junior Counsel (Mr Michael Gomulka and Ms L Collier for **Stokes**, Mr James Hines KC leading Mr S Blom-Cooper for **Palmer** and Mr Timothy Ellwyn Clark KC leading Mr Oliver Cook for **Miller**).

PRESENT PROCEEDINGS

Stokes and **Palmer** both **renew** their applications for leave to appeal ***conviction*** and for a Representation Order after refusal by Sir Nigel Davis. **Palmer** also applies to **vary his Grounds of Appeal** in accordance with the procedure set down in R v James & Ors [2018] EWCA Crim 285. If that application to vary is granted, he now challenges **a ruling given on a preparatory hearing** held under the Criminal Procedure and Investigations Act 1996. That preparatory ruling has not been challenged until this application to vary was lodged. **Palmer** has also lodged a separate claim for Judicial Review in the High Court. No order appears to have been made on that application as it appears to be awaiting the decision of this Court on the renewed application for leave.

Miller renews his applications for leave to appeal ***conviction*** and ***sentence*** and for a Representation Order after refusal by the same single Judge. He also applies to admit **fresh evidence** pursuant to Section 23 of the Criminal Appeal Act 1968, in the form of a witness statement from himself (with comments by his trial representatives in accordance with R v McCook), in support of the Ground of Appeal (argued by all applicants) in relation to an alleged **juror irregularity**. He also seeks **disclosure of the Jury Notes** relating to that alleged irregularity.

The Court are also invited by all the applicants to direct under s.23A of the Criminal Appeal Act 1968, that there be an investigation into the conduct of the jury in this case.

The applicants are all being produced via CVP for this hearing on this direction of the Vice-President of CACD:

"In view of the difficulties which have been encountered in arranging prison visits, I think there is a risk that one or more counsel will be inhibited by a lack of instructions if the applicants are not taking any part in the hearing. I am therefore prepared, exceptionally, to direct that all three applicants may take part in the hearing via a video link. They must understand that that does not mean that they will be entitled to address the court: their counsel will speak for them."

REPRESENTATION

The applicants are each represented at the hearing as follows:

Mr Jeremy Dein KC and Ms Kerrie Ann Rowan (fresh Counsel) and Reeds Solicitors (trial solicitors) on a private basis for **Stokes**

Mr Simon McKay (fresh Counsel) and Opus Law Solicitors (fresh solicitors), on a private basis for **Palmer**

Mr Edward Fitzgerald KC, Mr Rabah Kherbane (both fresh Counsel) and Berkeley Square Solicitors (trial solicitors) on a private basis for **Miller**

The Prosecution are represented by **four Counsel** in this case, Mr Kevin Dent KC, Mr Jonathan Kinnear KC, Ms Nadia Silver and Mr Alex Langhorn.

The Prosecution have asked to attend this renewed application for leave, to assist the Court.

The Criminal Appeal Office time estimate is 1 day.

The suggested reading time for the core material in this case is 2.5 days.

TRANSCRIPTS

Vol. 1	Ruling on preparatory hearing handed down on 7 March 2022		
Vol. 2	Further ruling on admissibility of EncroChat on 7 February 2023		
Vol. 2A-B	Evidence of Luke Shrimpton on 21 February 2023 and 22 February 2024		
Vol. 3	Ruling on discharge of Juror 11 on 4 April 2023		
Vol. 4	Ruling on discharge of the Jury handed down on 28 April 2023		
Vol. 5A-K	Summing-up (from 4 April – 2 May 2023):		
	Vol. 5A 04 April 2023	Vol. 5B 13 April 2023	Vol. 5C 17 April 2023
	Vol. 5D) 18 April 2023	Vol. 5E 19 April 2023	Vol. 5F 21 April 2023
	Vol. 5G 24 April 2023	Vol. 5H 25 April 2023	Vol. 5I 27 April 2023
	Vol. 5J 28 April 2023	Vol. 5K 02 May 2023	
Vol. 6	Sentencing remarks on 6 June 2023		

FACTS *(Taken from Vol. 5 - the summing up, unless otherwise stated)*

Count 1

At 10.30pm on 29 May 2020, Reiss Larvin was shot multiple times in the living room of his home address in Birmingham. He lived there with his partner Lauren Whyley and her daughter (aged 5 at the material time). A masked gunman knocked on the door on the pretext of making a Tesco delivery, forced his way into the house past Miss Whyley and her daughter, and started shooting Mr Larvin; who after being shot, tried to escape by crawling away. Miss Whyley used her own body as a shield to protect her daughter. After repeatedly firing the gun, the masked intruder then ran away. Mr Larvin was left in a life-threatening condition and had been shot to the face, hand and twice in the back (five times in total). The masked gunman has never been identified and remarkably Mr Lanvin survived the shooting after extensive surgery. None of the bullets were deemed suitable for removal. The other occupants of the house were uninjured. The motive for the shooting was said to be Mr Larvin's involvement in the supply of drugs. *(Para. 13, Perfected Grounds for Stokes, Para. 3 of the Advice for Miller; Vol. 5B, 38D-39F & Para. 1-11 of the Opening Note)*

The **Prosecution case on Count 1** was that between 14 April 2020 and 31 May 2020, a period of approximately 6 weeks, the three applicants conspired with two other males, Philip O'Brien and Peter

Henry, as well as others unknown, to murder Reiss Larvin. *(Count 1, Indictment & Para. 23 Opening Note; Vol. 5B, 2A-C)*

It was their case that the applicants **Miller** and **Palmer**, together with a third male (Henry – who has fled the jurisdiction), were professional hitmen/intermediaries hired by Philip O'Brien, a high-level drug dealer based in Dubai, but whom had a significant drug dealing operation in Birmingham; to organise a contract killing on Mr Larvin for the sum of £100,000. The murder was arranged and facilitated using EncroChat phones. The applicant **Stokes** was a direct associate of O'Brien based in Coventry and he introduced O'Brien to Miller, Palmer and Henry, and was said to have provided them with a gun and a car to facilitate the killing. The unidentified masked gunman was to be paid £40,000 and had been subcontracted by Miller, Palmer and Henry to carry out the "hit". *(Para. 9-12, Perfected Grounds for Stokes, Para. 12-15, Opening Note; Vol. 5B, 2C-D & Para. 6-7 of the Sentencing Remarks)*

Although Mr Larvin survived the shooting (meaning the hit was unsuccessful), it was the Prosecution case that Mr O'Brien was happy with the situation and paid the sum agreed despite offers to "go again" and finish the "job" on 12 June 2020. He then informed Palmer/Miller/Henry that he had four further contract killings for them to carry out for the total sum of £500,000. One of the "jobs" was based in Amsterdam. The second conspiracy which forms Count 2, relates to Miller only and his agreement (on the Prosecution's case) to organise the contract killing of another male, Adam Smith, on 12 June 2020. *(Para. 16-20, Opening Note)*

<u>Count 2</u>

The Prosecution case was that the murder of Adam Smith was circumvented when the day after that discussion (on 13 June 2020), when all EncroChat users became aware that the privacy and security of EncroChat had become compromised. *(Para. 5, Sentencing Remarks & Vol. 5B, 5H-6C for the message that was sent)*

<u>EncroChat</u>

An EncroChat telephone is a specialist device which can be used to send encrypted, unreadable messages and photographs securely between two contacts on the EncroChat cell network. Each must have given prior consent to be contacted by the other to make contact. Each user of the system is allocated a 'handle'

so as to remain anonymous to anyone not known to them, and there was a "burn-time" fail-safe to clear/delete messages from a handset's memory after a pre-programmed period. The users of the EncroChat system paid substantial sums for the handset (which had a "dummy" side to give the appearance of being an android device) and for access to what was perceived to be a "safe" network. Users at one point in time (i.e. before June 2020), believed it to be impenetrable and therefore freely used EncroChat to conduct organised crime.

The National Crime Agency ("the NCA") responded to the threat of EncroChat through "Operation Venetic". By its Operation Venetic, one of the largest operations of its kind, the NCA sought to investigate and disrupt suspected serious organised crime in the UK. *(Para. 9 of the Ruling on the Preparatory Hearing)*

EncroChat servers were hosted by a legitimate company in Roubaix in France and in early 2020, the French and Dutch prosecutors formed a joint investigation team ("JIT") which the UK were not invited to join because of Brexit, but were invited to participate in an operational task force. The JIT had succeeded in imaging the EncroChat servers and at a Europol meeting in February 2020, the NCA were briefed that the capability to obtain data (by inserting malware into the phones using a software update, aka: "the French implant") was expected to be deployed from 10 March and the collection period was expected to last 2 months. Once the JIT took down the servers, it was anticipated that the data could then be used in evidence. Operation Venetic was as a result of these developments reclassified and made the NCA's top priority. *(Vol. 5B, 6G-7C; 8H)*

The British authorities issued European Investigation Orders on 24 February and 11 March 2020 seeking mutual legal assistance in respect of the messages intercepted from EncroChat handsets located in the UK. By an application dated 24 March 2020, the NCA sought a Targeted Equipment Interference warrant authorising the planned interference with the estimated 9,000 EncroChat handset devices that were within the UK. The application was approved by Sir Brian Leveson on 27 March 2020 and the warrant issued. *(Para. 9 of the Ruling on the Preparatory Hearing)*

The EncroChat messages on the UK-based handsets were subsequently transmitted to the NCA as part of Operation Venetic. They were sent from the French or Dutch authorities, who harvested the messages

and filtered them by country. These were referred to as "Operation Venetic data packs". In this case, many of the EncroChat phones used in the conspiracies were based in the UK and therefore the Prosecution relied on EncroChat data extracted from those data packs. *(Vol. 5A, 11F-12A)*

However, O'Brien was based in Dubai. After the shooting of Ross Larvin, the NCA commenced "Operation Rockrose" in relation to this offence. As part of Operation Rockrose, the NCA sought additional data harvested from the Dubai-based handsets. That Dubai data was provided in Excel spreadsheet format and was a more processed product then the Operation Venetic data packs. Mr Luke Shrimpton, the NCA's lead technical officer on EncroChat, gave expert evidence at the trial as to the means deployed by the joint investigation team to obtain the EncroChat evidence in this case and as to how EncroChat data received was validated by the NCA. He could not speak to the methodologies employed in relation to the UK based phones or the Dubai based phones by the authorities outside of the UK. *(Vol. 5A, 11B-12E; 15A-D; Vol. 5B, 7C-38B)*

The Arrests of the Applicants

On 15 June 2020, the applicant Palmer was arrested on suspicion of conspiring to murder Reiss Larvin (Count 1). *(Para. 13 of the Ruling on the Preparatory Hearing)*

The applicant Miller was arrested on 17 July 2020. The following day he was charged with conspiring to murder Adam Smith (Count 2). *(Para. 16 of the Ruling on the Preparatory Hearing)*

On 6 August 2020, police found a loaded handgun, a quarter of a kilo of cocaine and an EncroChat phone in a concealed compartment of the car belonging to the co-accused Palmer. *(Para. 21-23 Opening Note)*

The Prosecution Evidence

To prove the case, the Prosecution primarily relied on the EncroChat evidence to prove the existence of the conspiracy and the role of each applicant in it; in addition to the agreed fact that Mr Larvin was repeatedly shot on 29 May 2020. *(Vol. 5A, 6C)*

They principally relied on the expert evidence of Mr Luke Shrimpton from the NCA to prove the EncroChat evidence from both the UK based phones and the Dubai phones was reliable. *(Vol. 5A, 15A-*

15D. See also the transcript of the evidence of Luke Shrimpton on 21 February 2023 and 22 February 2024 and Vol. 5B, 3H)

The key elements of the conspiracy on Count 1 were said to have been sent over EncroChat between "AmazonWorld" (alleged to be O'Brien), "Whitestuff" (alleged to be mainly Palmer, but on occasions used by Miller and Henry), and "Betterbee" and "Worldscooter" (both alleged to be Stokes). "Fader" was also said to be used by Miller. *(Para. 36-37, Opening Note)*

The critical EncroChat material on Count 1 was identified as:

(i) On 15 April 2020, Worldscooter (Stokes) introduced AmazonWorld (O'Brien) to Whitestuff (Palmer/Miller/Henry).

(ii) On the same day, AmazonWorld (O'Brien) and Whitestuff (Palmer/Miller/Henry) agreed arrangements for the murder of a man for a fee of £100,000.

(iii) Over the next few weeks, encrypted messages showed Worldscooter (Stokes) assisting by seeking to source a stolen car for the planned shooting and arranging to meet Whitestuff (Palmer/Miller/Henry) to deliver a gun and ammunition.

(iv) AmazonWorld (O'Brien) provided Whitestuff (Palmer/Miller/Henry) with photographs of Mr Larvin and his home together with details of his home address at 99 Downsfield Road and the surrounding area, his car and his usual movements. AmazonWorld (O'Brien) also made arrangements to provide Whitestuff (Palmer/Miller/Henry) with a stolen car on false plates for his use in Birmingham. When Whitestuff (Palmer/Miller/Henry) asked where he could get rid of the car, AmazonWorld (O'Brien) assured him that it was his "manor" and that he could park up and the car would not "get seen."

(v) On 10 May 2020, Whitestuff (Palmer/Miller/Henry) arranged to travel to Sutton Coldfield to meet with AmazonWorld's associate, No.deal, and collect the advance payment of

£50,000 and then to go on to Birmingham to meet Betterbee (Stokes) in order to collect the gun.

(vi) Within hours of Mr Larvin's shooting on 29 May, AmazonWorld (O'Brien) was making arrangements to pay the balance of £50,000 to Whitestuff (Palmer/Miller/Henry). Further, there was discussion about the shooting and some astonishment that Mr Larvin had survived. *(Para. 4 of the Ruling on the Preparatory Hearing)*

The key elements of the second conspiracy (Count 2) between Craig Miller, and others, to murder Adam Smith were said to be the discussion on 12 June 2020 between "MidlandKing" (alleged to be a second EncroChat handle used by O'Brien) and "Browsword" (alleged to be Miller). *(Para. 4 of the Ruling on the Preparatory Hearing & Para. 36-37, Opening Note)*

The Prosecution relied on supporting circumstantial evidence in support of the fact that the attribution was correct and to show that the EncroChat evidence was reliable.

(1) **Cell-site evidence** suggested a meeting at Bicester on 9 May 2020 between Miller, Stokes and Henry and showed on 10 May 2020 the WhiteStuff device travelled to Manor Road in Sutton Coldfield as directed in a message from AmazonWorld allegedly received by WhiteStuff on 9 May and close to where the cash was later found. *(Para. 32, ruling on 7 Feb 2023)*

(2) Comparison of that cell-site evidence with the **telematics and ANPR data** in respect of the movements of Palmer's Mercedes car in which the WhiteStuff device was later discovered supported the proposition that the EncroChat device made the journey in that car. *(Para. 32, ruling on 7 Feb 2023)*

(3) The Prosecution relied upon the cell-site evidence, telematics evidence and ANPR evidence as being consistent with the messages exchanged between AmazonWorld, NoDeal, WhiteStuff and BetterBee arranging and later confirming the meeting and payment of the first instalment of £50,000. *(Para. 32, ruling on 7 Feb 2023)*

(4) Earlier cell-site evidence linked WorldScooter to the Manor Road address immediately after its user exchanges messages with KeepRighton about the location. *(Para. 32, ruling on 7 Feb 2023)*

(5) Cell-site evidence then showed that on 19 May 2020 the WhiteStuff device travelled to the area around Downsfield Road in Birmingham that AmazonWorld had provided to WhiteStuff the previous day as the home address of Reiss Larvin. *(Para. 32, ruling on 7 Feb 2023)*

(6) Items found during police searches of their cars and premises and in particular, DNA evidence linking Palmer to items found in his Mercedes car (items found were the handgun, cocaine and an EncroChat phone with the "Whitestuff" handle). *(Para. 21-23, Opening Note)*

(7) Trips made to Bicester, Sutton Coldfield and Linden Way in furtherance of the conspiracy on Count 1. *(Vol. 5A, 7C; 10G-11F; 16C-E)*

In relation to the attribution of the handle "Whitestuff" to Palmer, Miller and Henry, the Prosecution case was that at least one member of the group was responsible for sending and receiving all the messages and acted with the knowledge and approval of the others. *(Vol. 5A, 6F-7B)*

The Prosecution further relied on Palmer having been interviewed seven times between 15 and 17 June and Miller four times on 17 July 2020. Both remained silent or answered "no comment" to all questions asked. The Prosecution further relied on their failure to mention key facts relied upon in their defence at trial to infer their guilt. *(Vol. 5A, 16A-16E)*

In relation to both **Palmer** and **Miller**, the Prosecution also relied on their failures to set out their defence fully in their Defence Statements to infer their guilt and to show their evidence was not credible. *(Vol. 5A, 18A-19A)*

In relation to **Stokes** the Prosecution relied on his failure to give evidence to show he had no credible answer to the charges and to infer his guilt. *(Vol. 5A, 19B-E)*

The **Defence case for Miller and Palmer on Count 1,** was that the EncroChat messages were (a) unreliable as the methodology in obtaining them was not known and (b) the data had not been properly processed and transmitted to the UK authorities. They did not show an agreement to murder (Count 1) and neither Miller or Palmer used the handle "Whitestuff" in any event, although Palmer accepted he had brief dealings with that handle when providing technical support to its true user on 13 June 2020. *(Vol. 5A, 6D-7A; Vol. 5B, 2E-G and Defence Statement for Miller and Palmer)* Miller and Palmer admitted being friends with each other and Henry. They did not answer questions in interview and provided Defence Statements on the advice of their solicitors. *(Vol. 5A, 17A)*

Palmer gave evidence in his own defence *(Vol. 5C – Summing up on 17.04.2023 from 17F)* that he allowed others to use his Mercedes motor car and that on 13 June 2020 he transferred the "Whitestuff" handle. He had never used it to send or receive messages and he did not ever communicate with "Amazonworld" or "Worldscooter". He used the handle "Saltyherb" and gave an explanation as to his trips to Sutton Coldfield and Bournemouth. *(Vol. 5A, 16A-E)* He also told the jury that he was involved in the importation of cannabis and he used EncroChat for that purpose. *(Vol. 5A, 17G; Vol. 5B, 6C-E)*

The Defence case for Miller on Count 2, was the same as for Count 1 (although the messages relied upon were different) and he denied any knowledge of the device attributed to him and using the handle "Browsword". *(Vol. 5A, 8D-H & Vol. 5B, 2G-H)*

Miller gave evidence in his own defence *(Vol. 5C – Summing up on 17.04.2023 from 11H)* that he had never used the handles "Whitestuff" or "Browsword" and had never communicated with the handles relied upon in both conspiracies. He did not travel to Sutton Coldfield in the Mercedes on 10 May 2020. *(Vol. 5A, 16D-E)* He had many business interests in the UK but had never declared them for income tax purposes. *(Vol. 5A, 17G)*

The **Defence case for Stokes** was that he accepted he had used the handles/phones attributed to him but he denied he was the user at the relevant times of this conspiracy. He did not give or call any evidence but put his case through cross-examination and his prepared statement given in police interview. He challenged the evidence co-locating his phone with "Worldscooter" at a relevant point in time for the

conspiracy and the Prosecution expert agreed that it was possible they were not co-located. *(Vol. 5A, 7D-E; 17D-E; Vol. 5B, 23H-27C and Defence Statement)*

The **issues for the jury** were whether they could be sure that:

(1) there was a conspiracy to murder

(2) that the EncroChat evidence was reliable and that the handles had been correctly attributed

(3) that the Prosecution had proved that each applicant was a party to the conspiracy to murder Reiss Larvin on Count 1.

With respect to Count 2 they had to be sure of the same elements having been proven to find (4) Miller conspired to Murder Adam Smith (Count 2). *(Vol. 5A, 6D-9F)*

ADMISSABILITY OF EVIDENCE

BACKGROUND TO ENCROCHAT OVERARCHING PROCEEDINGS

On 13 June 2020, the administrators of EncroChat sent a message to all users warning that security of the devices had been compromised and advising all users to dispose of their devices immediately. Thereafter a number of prosecutions took place in England and Wales which relied on EncroChat evidence.

The Court of Appeal gave two Judgments on challenges to preparatory rulings concerning the admissibility of EncroChat:

A, B, D & C v R [2021] EWCA Crim 128 *(Judgment dated 5 February 2021)*

R v Atkinson & Ors [2021] EWCA Crim 1447 *(Judgment dated 7 October 2021)*

The key points of principle were resolved by the Court in *R v. A, B, D and C [2021] EWCA Crim 128* (Lord Burnett of Maldon CJ, Edis LJ and Whipple J, 5 February 2021) and *R v. Atkinson and others [2021] EWCA Crim 1447* (Fulford LJ, Vice-President of the Court of Appeal, Criminal Division, Murray and Wall JJ, 7 October 2021). In the first appeal it was decided that EncroChat material may be admitted in evidence in criminal proceedings because the relevant data had not been intercepted at the time of transmission, but had been intercepted from what was stored on the phones themselves; and, in the second of these appeals, it was determined, on further expert evidence, that "the alternative hypothesis", namely the possibility that the EncroChat material was extracted during transmission, could safely be discounted. Both decisions upheld rulings of the trial judges after hearing evidence.

In 2021, a complaint was brought in the Investigatory Powers Tribunal ("the IPT") against the NCA, assailing the legality of the Targeted Equipment Interception Warrant which authorised obtaining the EncroChat material. The hearings before the IPT concluded in December 2022. (*Faetz & Ors v National Crime Agency).* Since those proceedings, the Court of Appeal gave Judgment in:

R v Murray & Others [2023] EWCA Crim 282 *(Judgment dated 16 March 2023)*

THE PREPARTORY HEARING ON THE ADMISSABILITY OF THE ENCROCHAT EVIDENCE *(Ruling handed down on 7.03.2022)*

In November 2021, the Court held a Preparatory Hearing in this case pursuant to the Criminal Procedure & Investigations Act 1996. The hearing was set down by Goss J. at the request of the defence, to determine the admissibility of the EncroChat evidence. *(Para. 37 of the Ruling)*

In addition, there were applications:

(i) from Miller for the issue of a request for mutual legal assistance from Norway;

(ii) from Palmer, who applied to stay the indictment as an abuse of the Court's process.

The issues for the Preparatory Hearing:

1. The defence challenged as a matter of fact the Crown's assertion that the EncroChat material was intercepted from storage (such that it might have been lawfully intercepted pursuant to s.6(1)(c) and para. 2 of Schedule 3) and argued that the Court should find that it was, or might have been, intercepted in the course of transmission (such that it might be excluded by s.56(1)).

2. The defence further argued that there was in any event a breach of s.10 in respect of the June 2020 request for mutual assistance in connection with the Dubai material and that, accordingly, there was "interception related conduct" such that the Dubai material was inadmissible pursuant to s.56.

3. It was argued (by Palmer) that the Prosecution should be stayed as an abuse of process.

4. Even if the Dubai material was otherwise admissible, the defence argued that it should nevertheless be excluded pursuant to section 78 of the Police & Criminal Evidence Act 1984.

The ruling on the Preparatory Hearing was handed down by Mr Justice Pepperell on 7 March 2022. It was not appealed. The Judge concluded:

1. The application that the court should seek mutual legal assistance from Norway should be dismissed.
2. From the evidence before him, the EncroChat messages were intercepted from storage and not in the course of transmission.

3. The defence argument that the Dubai material was inadmissible on the grounds that there was interception-related conduct within the meaning of s.56(2)(c) of the 2016 Act was rejected.
4. Mr Palmer's applications to stay the indictment against him on the grounds of abuse of process was rejected.
5. The defence argument that the Dubai material should be excluded pursuant to s.78 of the 1984 Act was also rejected. *(Para. 101 of the Ruling)*

FURTHER RULING ON ADMISSABILITY OF THE ENCROCHAT EVIDENCE *(Taken from Vol. 2, handed down on 7.02.2023)*

The Judge held a further hearing on 17 January 2023 to consider the submissions from **Palmer** and **Stokes (supported by Miller)** that the EncroChat evidence both in the form of the Venetic data packs (UK based EncroChat phones) and the Excel spreadsheet (Dubai based EncroChat phones) were inadmissible hearsay. Further, Palmer also sought to challenge the admissibility of the messages intercepted from EncroChat devices located in Dubai on another ground, being that NCA officers unlawfully intercepted transmissions made by the EncroChat system by monitoring the Threat to Life System ("TTL") feed. *(Para. 6 & 18 of the handed down ruling)*

In a very detailed handed down ruling, **the Judge ruled** that the evidence was admissible under Section 117 of the Criminal Justice Act 2003. He was not satisfied that the evidence could be said to be unreliable and there was key supporting evidence in the form of cell-site, telematics and ANPR evidence which showed it was very reliable. Although the Judge accepted there was a lack of continuity evidence from the French authorities, the evidence would not be excluded under Section 117(7). *(See Vol. 2)*

In relation to the interception submissions, the Judge ruled that what this evidence amounted to was that NCA officers were able to and did "monitor" the French TTL system. He said that was self-evidently not the monitoring of the EncroChat telecommunications system itself but of the French computer system. Such conduct was not therefore a "relevant act" within the meaning of s.4(2) of the 2016 Act and the Judge accordingly rejected the defence submissions that the monitoring of the French TTL system by NCA officers in the UK was unlawful interception-related conduct within the meaning of s.56 *(See Vol. 2)*

DIRECTIONS TO THE JURY *(Taken from Vol. 5A – Summing up Day 1 on 4 April 2023, unless stated)*

Functions of Judge and jury	Vol. 5A, 4B-F, 9H-10G; Vol. 5B, 3B-3D
Burden and standard of proof	Vol. 5A, 4G-4H
Elements of the offences	Vol. 5A, 5A-9H
Separate consideration of counts/accused	Vol. 5A, 5A-C
Circumstantial evidence	Vol. 5A, 10G-11F
EncroChat evidence	Vol. 5A, 11F-12F
Evidence read but not agreed	Vol. 5A, 12F-14G
Expert evidence	Vol. 5A, 14H-15G
Failure to mention facts in interview	Vol. 5A, 15G-17C
Failure to mention facts in Defence Statement	Vol. 5A, 18A-19A
Evidence from the defendants	Vol. 5A, 17F-18A
Failure to give evidence	Vol. 5A, 19B-E
Unanimity	Vol. 5C, 37G-38C
Majority direction	Vol. 5K, 10F-G

See also the written directions and Route to Verdict on Count 1 and Count 2.

THE ALLEGED JURY IRREGULARITY

It was brought to the attention of the Judge that Juror number 11 had a pre-booked holiday and could only participate in the trial until the 19 April 2023. On 4 April 2023, the Judge stated that he was not minded to discharge the juror and that he anticipated the jury would be in deliberation on Monday 17 April 2023 and it would be unfortunate that a juror who had given up the amount of time concerned were not able to see through their public duty. *(Vol. 3, Ruling on 4 April 2023)*

The Jury commenced deliberations on 17 April 2023. *(Vol. 4, Para. 2)*

On 20 April 2023, the Jury had not yet returned verdicts. The Judge accordingly discharged Juror number 11 as a result of the pre-booked holiday. He directed the Jury that they should proceed as eleven jurors and that the views of Juror number 11 were essentially to be put aside. *(Vol. 4, Para.1-2)*

On 27 April 2023, the Judge indicated he had received a note from a Juror (Juror 7) which indicated that Juror 11 had been in contact with another juror and discussed the case with them after they had been discharged. The matter was disclosed to Counsel as far as possible and discussed in open Court *(Vol. 4, Para. 4 and Vol. 5I, Summing up on 27.04.2023)*

On 28 April 2023, Juror 7 provided another note which stated that some jurors had also been discussing the case in his absence and expressing concern that that was a breach of the instructions given by the Judge. After discussing all these matters with all Counsel and consulting the Criminal Practice Direction, the Judge directed that each juror should complete a questionnaire. The completed questionnaires revealed that one juror had been in contact with Juror 11. The other 10 jurors denied any contact. *(See Vol. 5J, Summing-up on 28.04.2023)*

In the absence of any application to discharge the jury, (which the Judge asked all Counsel to consider and to take instructions on) the **Judge ruled** that the jury would not be discharged despite the irregularity. The remaining jurors indicated they could still return true verdicts. *(See Vol. 4 – handed down ruling on the discharge of the jury **on 28 April 2023**)*

On 2 May 2023, the Judge received a further note from Juror 7 stating that jurors had committed perjury in their answers to the questionnaire and the juror asked to be discharged and to be isolated from the other jurors. The Judge then discharged Juror 7 with agreement from all Counsel. *(See transcript Vol. 5K on 2.05.2023)*

The jury were also given the majority direction on 2 May 2023 *(Vol. 5K at 10F-G)*

Relevant Jury Notes (for the Judges) – Miller formally applies to the Court for disclosure of these on the Note on R v Mirza below:

- Jury note on pre-booked holiday dated 5 April 2023
- Jury note on Juror 11 on 19 April 2023
- Jury note dated 27 April 2023
- Jury note dated 2 May 2023, page 1 of 2, page 2 of 2
- Further Jury note dated 2 May 2023

Note on R v Mirza (Disclosure of Jury Notes) dated 5 November 2024

SENTENCE *(Taken from Vol. 6 - the Sentencing Remarks)*

The Judge set out the facts of the offences. It was agreed that the Sentencing Guidelines for Attempted Murder were applicable. Had the murders been successfully carried out the Judge said he would have considered whole-life orders in this case. *(Vol. 6, Para. 1-10, Sentencing Remarks)*

In terms of **culpability**, the Judge remarked that this was very high, as the attempt on Larvin's life was made with a handgun and there was substantial planning and premeditation. In the case of Miller and Palmer the motive was financial gain. *(Vol. 6, Para. 11, Sentencing Remarks)*

In assessing **harm**, Mr Larvin had been reluctant to co-operate, but had suffered life threatening injuries and made a remarkably good physical recovery. This was a category 2 harm case with a starting point of 30 years imprisonment and a range of 25-30 years imprisonment. *(Vol. 6, Para. 12, Sentencing Remarks)*

In sentencing the **applicant Palmer**, the Judge said his offending was aggravated by his previous convictions and the fact he was on licence for money laundering offences at the time of this conspiracy. The Judge took into account his mitigation and in particular the impact on his young disabled son, but weighed against the gravity of Palmer's offending, there was no real mitigation. The adjusted starting point was 35 years imprisonment *(Vol. 6, Para. 13 & 15, Sentencing Remarks)*

Miller's previous convictions also included robbery, rape and firearm offences and were aggravating features, but the most serious aggravating feature was his second conviction for another conspiracy to murder a complete stranger and the Judge had to reflect the totality of the offending. The adjusted starting point in his case was 45 years imprisonment. Whilst being careful to avoid double counting, the Judge further attached weight to both Palmer and Miller acting as professional hitmen. *(Vol. 6, Para. 13 & 16, Sentencing Remarks)*

The Judge further remarked that the circumstances of Miller and Palmer's offending demanded a sentence of life imprisonment under s.285 of the Sentencing Act 2020. The minimum term set for Palmer was 23 years less 1084 days spent on remand. For Miller it was 30 years imprisonment less 1054 days spent on remand.

The Judge determined that the position of the **applicant Stokes** was different. He was not a professional hitman and had been living a criminal lifestyle to support his boss. Reflecting on his role merited a lower starting point of 25 years imprisonment but the sentence was aggravated by his previous convictions, although the Judge considered carefully the mitigation in his case with respect to his family. The Judge found that a life sentence would not be justified in his case and that the risk he posed to the public could be managed by a substantial determinate sentence. *(Vol. 6, Para. 17-19 & 25, Sentencing Remarks)*

To assist the sentencing Judge, the following documents were provided by Counsel:

Prosecution Sentence Note dated 26 May 2023
Stokes Note for Sentence dated 1 June 2023
Palmer Note for Sentence dated 2 June 2023

Sarah Bergstrom
Senior Legal Manager
Amended 5 November 2024